
A dark chapter returns: Stripping citizenship

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A dark chapter returns: Stripping citizenship

One of the lesser-known effects of the Trump administration's commitment to mass deportations is the right's newfound freedom to talk of expelling anyone of whom they disapprove. You'll hear people casually talking about [deporting](#) New York Mayor [Zohran Mamdani](#), or [Donald Trump](#) suggesting that "the Squad" — the self-proclaimed group that includes Democratic Reps. Alexandria Ocasio-Cortez of New York, Ayanna Pressley of Massachusetts, Rashida Tlaib of Michigan and Ilhan Omar of Minnesota, all women of color — should "[go back](#)" [where they came from](#), despite the fact that three of the four were born in the United States. Even though Omar, who was born in Somalia, became a naturalized citizen when she was 17, Trump has [said](#) many times that she should be deported.

It has become commonplace to hear such threats in the political discourse on the right. Even former United Nations Ambassador Nikki Haley, herself the daughter of immigrants, [said in 2022](#) that Sen. Raphael Warnock, D-Ga., should be expelled from the country. (Warnock was born in Savannah, Georgia.)

Now the Trump administration is attempting to turn that rhetoric into action. The New York Times reported on Thursday that the [Justice Department](#) is [targeting hundreds of citizens](#) for denaturalization and deportation proceedings, informing offices all over the country that they will be assigning cases against specific individuals. While there is yet no word who those individuals are or what criteria might be used, we do know that cases can be brought against naturalized citizens who can be proved to have committed fraud in obtaining citizenship or, in some situations, have been convicted of crimes. These orders follow an edict issued by the administration [establishing a quota](#) of denaturalizing 100 to 200 people per month in 2026.

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The Justice Department's announcement came with a brag: They are "pursuing the highest volume of denaturalization referrals in history." In other words, they hope to beat the records set during the Red Scares.

Such processes are not unprecedented. According to historian Patrick Weil, author of "The Sovereign Citizen: Denaturalization and the Origins of the American Republic," more than 22,000 Americans had their citizenship revoked between 1906 and 1967. According to the journalist Atossa Araxia Abrahamian, [most of the denaturalization procedures were administrative](#) in nature, for commonplace schemes such as fraudulent marriage and the like, and the subjects were often even invited to reapply for citizenship. But many anarchists and communists, even members of the German Bund during World War II, were stripped of their citizenship and deported.

One of the most famous cases [involved Emma Goldman](#), the early 20th-century anarchist and activist who was stripped of her American citizenship and sent to the Soviet Union in 1919 under the previous year's Alien Act, which allowed for the deportation of foreign anarchists.

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During the McCarthy Era, the government formalized some of the rules governing naturalization, requiring immigrants to prove their commitment to the Constitution and mandating no memberships of “subversive” organizations within the previous five years. Grounds for denaturalization and deportation included a naturalized citizen's refusal to testify before a congressional committee about subversive activities. There was even a period when anyone who lived overseas for an extended period of time could have their citizenship taken away. In short, denaturalization could be trotted out for vague reasons at the whim of the government. It's a wonder that historians and journalists have only been able to document about 22,000 cases.

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These proceedings more or less came to a halt in 1967, and Abrahamian points to a reason: Chief Justice of the Supreme Court Earl Warren. In the 1950s, the Court under Warren began to tighten the rules for denaturalization on the grounds that using it as punishment for certain acts was cruel and inhuman. With the interpretation of these decisions going back and forth for some time, the application of the guidelines was inconsistent until the Court finally acted with clarity in the 1967 case [Afroyim v. Rusk](#). Writing for the majority, Justice Hugo Black found:

The Constitution...grants Congress no express power to strip people of their citizenship...In our country the people are sovereign and the Government cannot sever its relationship to the people by taking away their citizenship...we hold that the Fourteenth Amendment was designed to, and does protect every citizen of this Nation against a congressional forcible destruction of his citizenship, whatever his creed color or race.

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While the [Supreme Court](#) looks likely to uphold birthright citizenship, it's possible that when the next big citizenship case reaches the docket, the conservative majority would decide to overturn *Afroyim*. From a conservative tactical point of view, it makes sense; it's an easy, less obvious way to split the baby and weaken the Fourteenth Amendment. And it's not as if they care about precedent anymore.

The Justice Department's target list is still obscure, but reports [claim](#) officials have identified at least 300 naturalized citizens. There is also action in Congress. But while it would be unlikely to pass with a Democratic House majority and would face the threat of a filibuster in the Senate, Trump could easily decide to pull out his pen and sign an executive order to serve as a wrecking ball. Texas GOP Rep. [Chip Roy](#), who is running for attorney general in the Lone Star State, has submitted a particularly grotesque piece of legislation that he [dubbed the “MAMDANI Act,”](#) which stands for Measures Against Marxism's Dangerous Adherents and Noxious Islamists.

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As the bill's title suggests, it would ban immigration by many Muslims and socialists. Since communists are already covered under previous laws, "socialists" means people like Mamdani and Sen. Bernie Sanders, I-Vt., who identify as Democratic Socialists. Belonging to the Democratic Socialists of America is mentioned specifically as a reason to deny a visa or green card application. In fact, you don't have to claim any affiliation with socialism at all; all you have to do is "advocate the restructuring of economic and social relations to reduce class distinctions." That would include pretty much all the entire Democratic Party and half of all Independents.

And guess what? The bill would strip any naturalized citizen who meets that criteria of his or her citizenship. Since it's aimed at both Muslims and "Marxists," it's only logical to assume that the name "Ilhan Omar" can be read between the lines. (Mamdani also meets that criteria, but then again, he is already named outright in the bill's title.)

This is straight-up McCarthyism, taken right out of the Red Scare playbook. Everything old is new again.

During the 2024 campaign, Donald Trump gave an infamous speech in which he [pledged](#) "we will root out the communists, Marxists, fascists, and the radical left thugs that live like vermin within the confines of our country." What he really meant was, "I'm coming after anyone who doesn't vote for me." And they are implementing his promise one authoritarian measure at a time.

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